

1 IN THE SUPERIOR COURT OF FRANKLIN, ESSEX COUNTY
2 MAIRA RIVERA d/b/a RIVERA INSTRUMENTS v. NORTHSTAR COURIER, LLC
3 Case No. FC-2026-CV-0418
4 Proceedings: Plaintiff's Motion to Compel and Motion for Preservation Sanctions
5 Date: April 7, 2026
6 Before: Hon. Lena Whitcomb, J.S.C.
7 Appearances: Nadine Ortiz for Plaintiff; Cole Vesper for Defendant.

8

9 SESSION SEGMENT 1

10 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
11 tablet data, and maintenance records for Dock 3. I have read the papers and want to
12 start with the timing issue.

13

14 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
15 Northstar still had fourteen-day video retention at that point, yet it produced only
16 four still frames and no export log showing a failed capture.

17

18 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
19 unless a supervisor manually exported it. The still images were exported by security
20 before the formal hold reached facilities.

21

22 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
23 behind actual time?

24

25 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The

1 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

2

3 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
4 is an actual server timestamp. That matters because the truck was still waiting, not
5 striking the gate.

6

7 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
8 is that not dispositive against causation?

9

10 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
11 after the crate was held in staging during the gate malfunction. Our expert
12 distinguishes threshold crossing from non-recoverable excursion.

13

14 MR. VESPER: That distinction appears nowhere in the contract. The product was already
15 outside range before any alleged Northstar conduct at the dock.

16

17 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
18 same damage shown in E-1?

19

20 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
21 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

22

23 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
24 as urgent. It does not establish a new impact caused by our truck.

25

1 THE COURT: What do you want me to order on the driver tablet?

2

3 MS. ORTIZ: A forensic export limited to Route BR-17 between 20:30 and 22:30, including
4 accelerometer, reverse sensor, and dock-proximity events.

5

6 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
7 acknowledgments, GPS pings, and message timestamps. A forensic image would be
8 expensive and overbroad.

9

10 THE COURT: Is there a less intrusive export?

11

12 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

13

14 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
15 after the hold notice.

16

17 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
18 about the absence of a preservation workflow, however.

19

20 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
21 absence of native video.

22

23 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
24 GPS data, and photos. There is no showing that the native video would have been
25 unfavorable to Northstar.

1

2 THE COURT: I will order a sworn declaration from facilities explaining the retention
3 system, export attempts, and who had access to CAM-D3 between October 15 and October
4 30.

5

6 THE COURT: I will also order production of the full work-order history for Dock 3 for
7 September 15 through October 20, 2025, including metadata fields if available.

8

9 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
10 after the declaration and supplemental production.

11

12 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
13 agree, submit a two-page joint statement identifying precise data fields.

14

15 SESSION SEGMENT 2

16 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
17 tablet data, and maintenance records for Dock 3. I have read the papers and want to
18 start with the timing issue. I am particularly focused on whether the Bates log
19 identifies a technician who actually attempted to export video before routine
20 overwrite.

21

22 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
23 Northstar still had fourteen-day video retention at that point, yet it produced only
24 four still frames and no export log showing a failed capture.

25

1 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
2 unless a supervisor manually exported it. The still images were exported by security
3 before the formal hold reached facilities.

4

5 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
6 behind actual time? I am particularly focused on whether the Bates log identifies a
7 technician who actually attempted to export video before routine overwrite.

8

9 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
10 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

11

12 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
13 is an actual server timestamp. That matters because the truck was still waiting, not
14 striking the gate.

15

16 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
17 is that not dispositive against causation? I am particularly focused on whether the
18 Bates log identifies a technician who actually attempted to export video before
19 routine overwrite.

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21 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
22 after the crate was held in staging during the gate malfunction. Our expert
23 distinguishes threshold crossing from non-recoverable excursion.

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25 MR. VESPER: That distinction appears nowhere in the contract. The product was already

1 outside range before any alleged Northstar conduct at the dock.

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3 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
4 same damage shown in E-1? I am particularly focused on whether the Bates log
5 identifies a technician who actually attempted to export video before routine
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9 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

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11 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
12 as urgent. It does not establish a new impact caused by our truck.

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14 THE COURT: What do you want me to order on the driver tablet? I am particularly
15 focused on whether the Bates log identifies a technician who actually attempted to
16 export video before routine overwrite.

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18 MS. ORTIZ: A forensic export limited to Route BR-17 between 20:30 and 22:30, including
19 accelerometer, reverse sensor, and dock-proximity events.

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21 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
22 acknowledgments, GPS pings, and message timestamps. A forensic image would be
23 expensive and overbroad.

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25 THE COURT: Is there a less intrusive export? I am particularly focused on whether the

1 Bates log identifies a technician who actually attempted to export video before
2 routine overwrite.

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4 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

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6 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
7 after the hold notice.

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9 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
10 about the absence of a preservation workflow, however. I am particularly focused on
11 whether the Bates log identifies a technician who actually attempted to export video
12 before routine overwrite.

13

14 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
15 absence of native video.

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17 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
18 GPS data, and photos. There is no showing that the native video would have been
19 unfavorable to Northstar.

20

21 THE COURT: I will order a sworn declaration from facilities explaining the retention
22 system, export attempts, and who had access to CAM-D3 between October 15 and October
23 30. I am particularly focused on whether the Bates log identifies a technician who
24 actually attempted to export video before routine overwrite.

25

1 THE COURT: I will also order production of the full work-order history for Dock 3 for
2 September 15 through October 20, 2025, including metadata fields if available. I am
3 particularly focused on whether the Bates log identifies a technician who actually
4 attempted to export video before routine overwrite.

5

6 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
7 after the declaration and supplemental production. I am particularly focused on
8 whether the Bates log identifies a technician who actually attempted to export video
9 before routine overwrite.

10

11 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
12 agree, submit a two-page joint statement identifying precise data fields. I am
13 particularly focused on whether the Bates log identifies a technician who actually
14 attempted to export video before routine overwrite.

15

16 SESSION SEGMENT 3

17 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
18 tablet data, and maintenance records for Dock 3. I have read the papers and want to
19 start with the timing issue.

20

21 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
22 Northstar still had fourteen-day video retention at that point, yet it produced only
23 four still frames and no export log showing a failed capture.

24

25 MR. VESPER: The retention policy was automatic. The system overwrote rolling video

1 unless a supervisor manually exported it. The still images were exported by security
2 before the formal hold reached facilities.

3

4 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
5 behind actual time?

6

7 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
8 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

9

10 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
11 is an actual server timestamp. That matters because the truck was still waiting, not
12 striking the gate.

13

14 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
15 is that not dispositive against causation?

16

17 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
18 after the crate was held in staging during the gate malfunction. Our expert
19 distinguishes threshold crossing from non-recoverable excursion.

20

21 MR. VESPER: That distinction appears nowhere in the contract. The product was already
22 outside range before any alleged Northstar conduct at the dock.

23

24 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
25 same damage shown in E-1?

1

2 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
3 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

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5 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
6 as urgent. It does not establish a new impact caused by our truck.

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8 THE COURT: What do you want me to order on the driver tablet?

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11 accelerometer, reverse sensor, and dock-proximity events.

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13 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
14 acknowledgments, GPS pings, and message timestamps. A forensic image would be
15 expensive and overbroad.

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17 THE COURT: Is there a less intrusive export?

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19 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

20

21 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
22 after the hold notice.

23

24 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
25 about the absence of a preservation workflow, however.

1

2 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
3 absence of native video.

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5 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
6 GPS data, and photos. There is no showing that the native video would have been
7 unfavorable to Northstar.

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9 THE COURT: I will order a sworn declaration from facilities explaining the retention
10 system, export attempts, and who had access to CAM-D3 between October 15 and October
11 30.

12

13 THE COURT: I will also order production of the full work-order history for Dock 3 for
14 September 15 through October 20, 2025, including metadata fields if available.

15

16 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
17 after the declaration and supplemental production.

18

19 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
20 agree, submit a two-page joint statement identifying precise data fields.

21

22 SESSION SEGMENT 4

23 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
24 tablet data, and maintenance records for Dock 3. I have read the papers and want to
25 start with the timing issue.

1

2 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.

3 Northstar still had fourteen-day video retention at that point, yet it produced only
4 four still frames and no export log showing a failed capture. Exhibit E-2 is important
5 because the yellow transfer on NS-2041 was documented before the vehicle returned to
6 general service.

7

8 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
9 unless a supervisor manually exported it. The still images were exported by security
10 before the formal hold reached facilities.

11

12 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
13 behind actual time?

14

15 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
16 still labeled 21:48 overlay is therefore approximately 21:59 actual time. Exhibit E-2
17 is important because the yellow transfer on NS-2041 was documented before the vehicle
18 returned to general service.

19

20 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
21 is an actual server timestamp. That matters because the truck was still waiting, not
22 striking the gate.

23

24 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
25 is that not dispositive against causation?

1

2 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
3 after the crate was held in staging during the gate malfunction. Our expert
4 distinguishes threshold crossing from non-recoverable excursion. Exhibit E-2 is
5 important because the yellow transfer on NS-2041 was documented before the vehicle
6 returned to general service.

7

8 MR. VESPER: That distinction appears nowhere in the contract. The product was already
9 outside range before any alleged Northstar conduct at the dock.

10

11 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
12 same damage shown in E-1?

13

14 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
15 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.
16 Exhibit E-2 is important because the yellow transfer on NS-2041 was documented before
17 the vehicle returned to general service.

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19 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
20 as urgent. It does not establish a new impact caused by our truck.

21

22 THE COURT: What do you want me to order on the driver tablet?

23

24 MS. ORTIZ: A forensic export limited to Route BR-17 between 20:30 and 22:30, including
25 accelerometer, reverse sensor, and dock-proximity events. Exhibit E-2 is important

1 because the yellow transfer on NS-2041 was documented before the vehicle returned to
2 general service.

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4 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
5 acknowledgments, GPS pings, and message timestamps. A forensic image would be
6 expensive and overbroad.

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8 THE COURT: Is there a less intrusive export?

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10 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

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12 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
13 after the hold notice. Exhibit E-2 is important because the yellow transfer on NS-2041
14 was documented before the vehicle returned to general service.

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16 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
17 about the absence of a preservation workflow, however.

18

19 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
20 absence of native video. Exhibit E-2 is important because the yellow transfer on
21 NS-2041 was documented before the vehicle returned to general service.

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23 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
24 GPS data, and photos. There is no showing that the native video would have been
25 unfavorable to Northstar.

1

2 THE COURT: I will order a sworn declaration from facilities explaining the retention
3 system, export attempts, and who had access to CAM-D3 between October 15 and October
4 30.

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6 THE COURT: I will also order production of the full work-order history for Dock 3 for
7 September 15 through October 20, 2025, including metadata fields if available.

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9 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
10 after the declaration and supplemental production.

11

12 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
13 agree, submit a two-page joint statement identifying precise data fields.

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15 SESSION SEGMENT 5

16 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
17 tablet data, and maintenance records for Dock 3. I have read the papers and want to
18 start with the timing issue.

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20 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
21 Northstar still had fourteen-day video retention at that point, yet it produced only
22 four still frames and no export log showing a failed capture.

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24 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
25 unless a supervisor manually exported it. The still images were exported by security

1 before the formal hold reached facilities. Plaintiff's timeline conflates overlay time
2 and actual time in at least two places in the moving papers.

3

4 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
5 behind actual time?

6

7 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
8 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

9

10 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
11 is an actual server timestamp. That matters because the truck was still waiting, not
12 striking the gate. Plaintiff's timeline conflates overlay time and actual time in at
13 least two places in the moving papers.

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15 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
16 is that not dispositive against causation?

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18 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
19 after the crate was held in staging during the gate malfunction. Our expert
20 distinguishes threshold crossing from non-recoverable excursion.

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22 MR. VESPER: That distinction appears nowhere in the contract. The product was already
23 outside range before any alleged Northstar conduct at the dock. Plaintiff's timeline
24 conflates overlay time and actual time in at least two places in the moving papers.

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1 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
2 same damage shown in E-1?

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5 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

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8 as urgent. It does not establish a new impact caused by our truck. Plaintiff's
9 timeline conflates overlay time and actual time in at least two places in the moving
10 papers.

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12 THE COURT: What do you want me to order on the driver tablet?

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15 accelerometer, reverse sensor, and dock-proximity events.

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17 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
18 acknowledgments, GPS pings, and message timestamps. A forensic image would be
19 expensive and overbroad. Plaintiff's timeline conflates overlay time and actual time
20 in at least two places in the moving papers.

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22 THE COURT: Is there a less intrusive export?

23

24 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.
25 Plaintiff's timeline conflates overlay time and actual time in at least two places in

1 the moving papers.

2

3 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
4 after the hold notice.

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6 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
7 about the absence of a preservation workflow, however.

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9 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
10 absence of native video.

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12 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
13 GPS data, and photos. There is no showing that the native video would have been
14 unfavorable to Northstar. Plaintiff's timeline conflates overlay time and actual time
15 in at least two places in the moving papers.

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17 THE COURT: I will order a sworn declaration from facilities explaining the retention
18 system, export attempts, and who had access to CAM-D3 between October 15 and October
19 30.

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21 THE COURT: I will also order production of the full work-order history for Dock 3 for
22 September 15 through October 20, 2025, including metadata fields if available.

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24 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
25 after the declaration and supplemental production.

1

2 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
3 agree, submit a two-page joint statement identifying precise data fields.

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5 SESSION SEGMENT 6

6 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
7 tablet data, and maintenance records for Dock 3. I have read the papers and want to
8 start with the timing issue.

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10 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
11 Northstar still had fourteen-day video retention at that point, yet it produced only
12 four still frames and no export log showing a failed capture.

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14 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
15 unless a supervisor manually exported it. The still images were exported by security
16 before the formal hold reached facilities.

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18 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
19 behind actual time?

20

21 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
22 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

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24 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
25 is an actual server timestamp. That matters because the truck was still waiting, not

1 striking the gate.

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3 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
4 is that not dispositive against causation?

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6 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
7 after the crate was held in staging during the gate malfunction. Our expert
8 distinguishes threshold crossing from non-recoverable excursion.

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10 MR. VESPER: That distinction appears nowhere in the contract. The product was already
11 outside range before any alleged Northstar conduct at the dock.

12

13 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
14 same damage shown in E-1?

15

16 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
17 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

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19 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
20 as urgent. It does not establish a new impact caused by our truck.

21

22 THE COURT: What do you want me to order on the driver tablet?

23

24 MS. ORTIZ: A forensic export limited to Route BR-17 between 20:30 and 22:30, including
25 accelerometer, reverse sensor, and dock-proximity events.

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2 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
3 acknowledgments, GPS pings, and message timestamps. A forensic image would be
4 expensive and overbroad.

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6 THE COURT: Is there a less intrusive export?

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8 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

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10 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
11 after the hold notice.

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13 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
14 about the absence of a preservation workflow, however.

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16 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
17 absence of native video.

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19 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
20 GPS data, and photos. There is no showing that the native video would have been
21 unfavorable to Northstar.

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23 THE COURT: I will order a sworn declaration from facilities explaining the retention
24 system, export attempts, and who had access to CAM-D3 between October 15 and October
25 30.

1

2 THE COURT: I will also order production of the full work-order history for Dock 3 for
3 September 15 through October 20, 2025, including metadata fields if available.

4

5 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
6 after the declaration and supplemental production.

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8 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot
9 agree, submit a two-page joint statement identifying precise data fields.

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11 SESSION SEGMENT 7

12 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
13 tablet data, and maintenance records for Dock 3. I have read the papers and want to
14 start with the timing issue. The order will use actual time where possible and will
15 require any overlay time to be labeled as such.

16

17 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
18 Northstar still had fourteen-day video retention at that point, yet it produced only
19 four still frames and no export log showing a failed capture.

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21 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
22 unless a supervisor manually exported it. The still images were exported by security
23 before the formal hold reached facilities.

24

25 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes

1 behind actual time? The order will use actual time where possible and will require any
2 overlay time to be labeled as such.

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4 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
5 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

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7 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
8 is an actual server timestamp. That matters because the truck was still waiting, not
9 striking the gate.

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11 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
12 is that not dispositive against causation? The order will use actual time where
13 possible and will require any overlay time to be labeled as such.

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15 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
16 after the crate was held in staging during the gate malfunction. Our expert
17 distinguishes threshold crossing from non-recoverable excursion.

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19 MR. VESPER: That distinction appears nowhere in the contract. The product was already
20 outside range before any alleged Northstar conduct at the dock.

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22 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
23 same damage shown in E-1? The order will use actual time where possible and will
24 require any overlay time to be labeled as such.

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1 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
2 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

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5 as urgent. It does not establish a new impact caused by our truck.

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8 actual time where possible and will require any overlay time to be labeled as such.

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14 acknowledgments, GPS pings, and message timestamps. A forensic image would be
15 expensive and overbroad.

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17 THE COURT: Is there a less intrusive export? The order will use actual time where
18 possible and will require any overlay time to be labeled as such.

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20 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

21

22 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
23 after the hold notice.

24

25 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned

1 about the absence of a preservation workflow, however. The order will use actual time
2 where possible and will require any overlay time to be labeled as such.

3

4 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
5 absence of native video.

6

7 MR. VESPER: That would be premature. Plaintiff has still images, witness statements,
8 GPS data, and photos. There is no showing that the native video would have been
9 unfavorable to Northstar.

10

11 THE COURT: I will order a sworn declaration from facilities explaining the retention
12 system, export attempts, and who had access to CAM-D3 between October 15 and October
13 30. The order will use actual time where possible and will require any overlay time to
14 be labeled as such.

15

16 THE COURT: I will also order production of the full work-order history for Dock 3 for
17 September 15 through October 20, 2025, including metadata fields if available. The
18 order will use actual time where possible and will require any overlay time to be
19 labeled as such.

20

21 THE COURT: I am denying an adverse inference without prejudice. Plaintiff may renew
22 after the declaration and supplemental production. The order will use actual time
23 where possible and will require any overlay time to be labeled as such.

24

25 THE COURT: Counsel should meet and confer on a narrower tablet export. If you cannot

1 agree, submit a two-page joint statement identifying precise data fields. The order
2 will use actual time where possible and will require any overlay time to be labeled as
3 such.

4

5 SESSION SEGMENT 8

6 THE COURT: We are here on plaintiff's motion to compel the native CAM-D3 video, driver
7 tablet data, and maintenance records for Dock 3. I have read the papers and want to
8 start with the timing issue.

9

10 MS. ORTIZ: Plaintiff requested a litigation hold at 09:42 on October 16, 2025.
11 Northstar still had fourteen-day video retention at that point, yet it produced only
12 four still frames and no export log showing a failed capture.

13

14 MR. VESPER: The retention policy was automatic. The system overwrote rolling video
15 unless a supervisor manually exported it. The still images were exported by security
16 before the formal hold reached facilities.

17

18 THE COURT: Does either side dispute that CAM-D3 was approximately eleven minutes
19 behind actual time?

20

21 MS. ORTIZ: We accept the Menon affidavit on clock lag for purposes of this motion. The
22 still labeled 21:48 overlay is therefore approximately 21:59 actual time.

23

24 MR. VESPER: Correct, but the driver's dispatch text at 21:31 is not overlay time. It
25 is an actual server timestamp. That matters because the truck was still waiting, not

1 striking the gate.

2

3 THE COURT: The temperature chart begins to exceed threshold at 20:59 actual time. Why
4 is that not dispositive against causation?

5

6 MS. ORTIZ: The excursion at 20:59 was minor and recoverable. The loss event occurred
7 after the crate was held in staging during the gate malfunction. Our expert
8 distinguishes threshold crossing from non-recoverable excursion.

9

10 MR. VESPER: That distinction appears nowhere in the contract. The product was already
11 outside range before any alleged Northstar conduct at the dock.

12

13 THE COURT: Turning to the work order, WO-7781 was opened October 12. Was that for the
14 same damage shown in E-1?

15

16 MS. ORTIZ: No. The October 12 note says intermittent bind. The October 15 photograph
17 shows a fresh crescent abrasion and bent lower slat. Those are different conditions.

18

19 MR. VESPER: The facilities entry at 22:06 simply reclassified the existing work order
20 as urgent. It does not establish a new impact caused by our truck.

21

22 THE COURT: What do you want me to order on the driver tablet?

23

24 MS. ORTIZ: A forensic export limited to Route BR-17 between 20:30 and 22:30, including
25 accelerometer, reverse sensor, and dock-proximity events.

1

2 MR. VESPER: The tablet does not store reverse sensor data. At most it stores route
3 acknowledgments, GPS pings, and message timestamps. A forensic image would be
4 expensive and overbroad.

5

6 THE COURT: Is there a less intrusive export?

7

8 MR. VESPER: Yes, a normalized GPS and message export, which we already offered.

9

10 MS. ORTIZ: The offered export omits device-level logs showing whether data was deleted
11 after the hold notice.

12

13 THE COURT: On sanctions, I am not prepared to find bad faith today. I am concerned
14 about the absence of a preservation workflow, however.

15

16 MS. ORTIZ: At minimum, we request an instruction allowing the jury to consider the
17 absence of native video.

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20 GPS data, and photos. There is no showing that the native video would have been
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